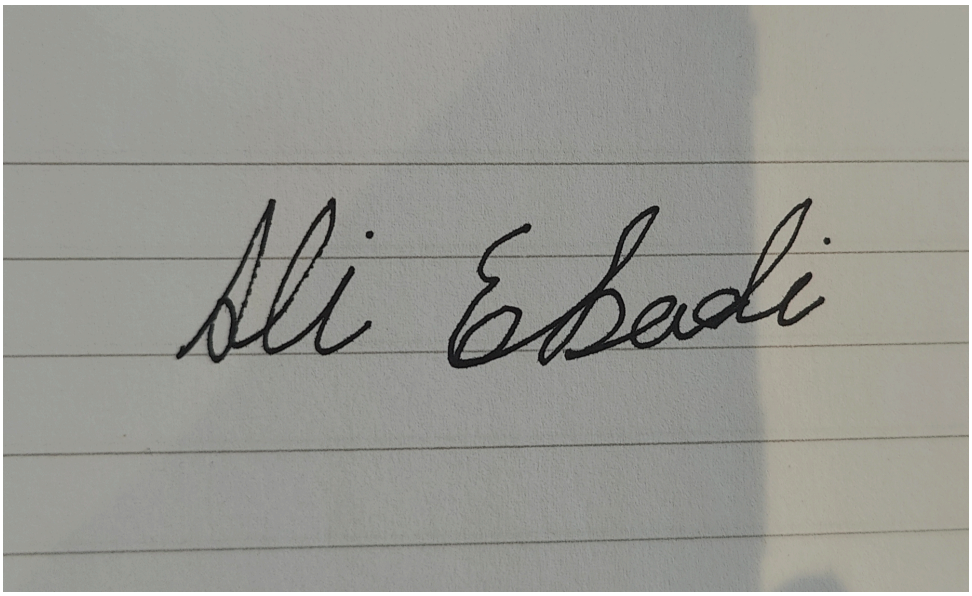
BUYER NON-DISCLOSURE & NON-CIRCUMVENTION AGREEMENT

1. Purpose
By clicking "I Accept" you ("Buyer") agree to the terms of this Agreement with FIH LLC (dba FIH.com) ("Broker") to receive confidential information about one or more businesses marketed by Broker ("Business") solely for evaluating a possible acquisition ("Purpose"). "Seller" means the owner(s) of any Business whose information is provided by Broker.
2. Confidential Information
"Confidential Information" means all non-public information provided by Broker, Seller, or their representatives, whether written, oral, or electronic, including business, financial, technical, operational, or strategic details. It does not include information that: (a) was already known to Buyer before disclosure; (b) becomes public through no fault of Buyer; or (c) is obtained from a third party without confidentiality obligations.
3. Buyer Obligations
Buyer agrees to:
(a) Use Confidential Information only for the Purpose;
(b) Not disclose Confidential Information to anyone except Buyer's professional advisors bound by confidentiality;
(c) Ensure Buyer's representatives comply with this Agreement;
(d) Notify Broker immediately of any unauthorized disclosure;
(e) Return or destroy Confidential Information upon request.
Confidentiality obligations remain in effect for three (3) years from acceptance of this Agreement.
4. Non-Circumvention & Fee Protection
Buyer, its affiliates, partners, or representatives shall not:
(1) Contact or transact with any Seller introduced by Broker without Broker's written consent;
(2) Circumvent or attempt to circumvent Broker's right to its sell-side M&A success fee, whether Seller agrees to pay or not;
(3) Complete any transaction with a Seller introduced by Broker without ensuring Broker is paid in full at closing from transaction proceeds, including post-closing or contingent payments (earn-outs, holdbacks, seller notes, equity, or other consideration).
Buyer agrees that:
- Broker's tiered success fee (typically 2–9% net of total deal value, minimum $50,000) is owed at closing and shall be disbursed directly to Broker by the closing agent, escrow, or Buyer;
- If Seller refuses to authorize payment, Buyer will pay Broker directly at closing, with such payment credited against Buyer's purchase price to Seller;
- This obligation survives for 24 months after last receipt of Confidential Information on a Business.
5. Platform-Based Transaction Costs
If Buyer views a listing on a third-party platform such as Acquire.com or Flippa.com, that platform may charge a transaction fee to Broker (often around 2%). In such cases, this fee will be treated as a buy-side cost and added to the transaction purchase price payable by Buyer, capped at a maximum of 2%. This cost will not apply to any deals viewed or originated directly through the FIH.com platform.
6. Non-Liability
Buyer acknowledges:
- Broker is not liable for the accuracy or completeness of Confidential Information and makes no warranties;
- Buyer will conduct independent due diligence;
- Broker is not liable for damages from inaccurate information or misuse of Confidential Information by Seller or third parties; any such claims are the Buyer's sole responsibility.
7. Remedies
Any breach of this Agreement will cause irreparable harm to Broker and/or Seller, entitling Broker to injunctive relief, specific performance, recovery of its full success fee, interest at 1.5% per month on unpaid amounts, and all collection costs including attorneys' fees.
8. Governing Law
This Agreement is governed by the laws of either (at Broker's sole election): (a) The State of Ohio, with jurisdiction in state or federal courts located in Cincinnati, OH; or (b) The State of New York, with jurisdiction in state or federal courts located in New York County, NY. Judgment may be enforced in any jurisdiction where Buyer has assets.
9. Entire Agreement.
This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior and contemporaneous agreements and understandings, whether oral or written.
BY CLICKING "I ACCEPT", BUYER ACKNOWLEDGES THAT THEY HAVE READ, UNDERSTAND, AND AGREE TO BE LEGALLY BOUND BY THIS AGREEMENT.

FIH/Seller Representative		**Buyer**	
By:		By:	
Printed Name:	**Neil Patrick Bostick**	Printed Name:	**ALI EBADI**
Title:	**CEO - FIH.com**	Title:	**POTENTIAL BUYER FOR UBQITY.COM**
Address:	**30 Cornelia Street #10 New York, NY 10014 USA**	Address:	**ALI.EBADI20@GMAIL.COM**

Dated:	**06/03/2024**	Dated:	**06/03/2024**